



Appeal Decision

Site visit made on 15 July 2026

by D Wilson BSc (Hons) MRTPI

an Inspector appointed by the Secretary of State

Decision date: 7 September 2026.

Appeal Ref: 6007373

Car Park Between Castle Mews And 7 Castle Road, Castle Road, North Finchley, Barnet, London N12 9EE

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Sansprine Limited against the decision of the Council of the London Borough of Barnet.
 - The application Ref is 25/0632/FUL.
 - The development proposed is redevelopment of the Site to provide 20 residential dwellings (Use Class C3); together with landscaping, access, cycle parking and other associated works.
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Decision

1. The appeal is allowed and planning permission is granted for redevelopment of the Site to provide 20 residential dwellings (Use Class C3); together with landscaping, access, cycle parking and other associated works at Car Park Between Castle Mews And 7 Castle Road, Castle Road, North Finchley, Barnet, London N12 9EE in accordance with the terms of the application, Ref 25/0632/FUL, subject to the conditions in the attached schedule.

Preliminary Matter

2. During the appeal determination, a new National Planning Policy Framework (the Framework) was adopted on 17th August 2026. The main parties were given an opportunity to comment on the new Framework, and I have taken any comments received into account.

Main Issues

3. The main issues are the effect of the proposed development on:
 - the character and appearance of the area,
 - the living conditions of neighbouring occupiers with regard to outlook, and
 - whether adequate provision of disabled persons parking spaces would be provided.

Reasons

Character and appearance

4. The appeal site is a car park which is associated with offices near to the appeal site. The site is predominantly surrounded by residential properties and their gardens with the site itself being laid to hardstanding. Dwellings are mostly two-storey and the pattern of development is generally dense with most houses being terraced. Dwellings in the area tend to have small front gardens or parking areas as well as trees and landscaping dotted along the streets which results in an open character and appearance.
5. The proposed development would have a L-shaped design that follows the shape of the appeal site with a combination of two-storey terraced housing and cottages with a street running through the centre of the site. There are also two three-storey buildings proposed, one of which would front the appeal site with a stepped height, arched roof and set back which allows for landscaping and would provide an attractive entrance to the appeal site. While the proposal would predominantly be a large block, this would not be at odds with the mostly terraced houses nearby which combined with the gaps and landscaping proposed would not appear bulky in this context.
6. The appeal site is modest in size, however, as the scheme is proposed to be car free, the development would have a large pedestrian walkway and open spaces throughout which means that while there are 20 houses proposed, it would not appear as an overdevelopment of the modest appeal site. Instead, it would mirror the generally dense pattern of development nearby but also allow for landscaping and foliage which would be in keeping with the open character and appearance of the wider area.
7. The proposed design would be contemporary, and while it would deviate from the uniform design of other dwellings nearby it draws on elements of design patterns from nearby dwellings such as using similar materials but also seeks to create visual interest through a mix of fenestration, large and differing shaped windows as well as parapets and lintels. The overall result is a scheme that sits well within the wider area, would not appear bulky and would preserve the open character and appearance of the area.
8. I therefore conclude that the proposed development would not harm the character and appearance of the area. I find no conflict with Policy D3 of the London Plan 2021, Policy CDH01 of the Barnet Local Plan 2021-2036 Adopted March 2025 (LP) and guidance contained within the Local Plan Supplementary Planning Document: Residential Design Guidance October 2016 (Residential SPD). Amongst other things, these seek to ensure that developments respond sensitively to the distinctive local character and design, building form, patterns of development, scale, massing, roof form and height of the existing context.

Living conditions of neighbouring occupiers

9. The proposed development would be located close to those properties along Castle Road and Stanhope Road. However, the development has been designed to soften the impact by the use of a barrel-vaulted roof that would slope towards the boundary of the site. Furthermore, lighter bricks and recessed patterns for the windows can be secured by a suitably worded planning condition.

10. I acknowledge that built form would be located close to the gardens of properties along Castle Road and Stanhope Road, however, the gardens for these properties have a generous depth which would mitigate against the harm. I also note that many gardens also have large outbuildings to the rear which provide a degree of screening and separation which would further mitigate the impact of the proposed development. In regard to the properties along Castle Mews, these would be located a suitable distance away from the appeal site to not result in any harm to outlook.
11. The design of the proposed development incorporates numerous aspects such as creating notches in the elevations, use of differing materials, creating visual interest and differing roof heights. These in combination would mean that the building would not have a bulky or overly long appearance and would therefore not result in an unacceptable means of enclosure for the occupiers of neighbouring properties and for the same reasons would not result in an unacceptable overbearing development.
12. I therefore conclude that the proposed development would not harm the living conditions of neighbouring occupiers with regard to outlook. I find no conflict with Policy D3 of the London Plan, Policy CDH01 of the LP and guidance contained within the Residential SPD and Local Plan Supplementary Planning Document: Sustainable Design and Construction October 2016. Amongst other things, these seek to ensure that development allows for acceptable levels of outlook for adjoining and nearby users impacted by the development.

Disabled persons parking spaces

13. The proposed development would be car free and would be secured by a planning obligation that would prevent future occupiers from obtaining parking permits and thereby parking on the surrounding streets.
14. Notwithstanding the above, Policy T6.1 of the London Plan requires that disabled persons parking should be provided for new developments delivering ten or more units at a percentage of 3% of dwellings. To meet this minimum requirement two disabled persons parking spaces were originally proposed at the entrance to the appeal site. However, these were later removed at the request of the Council due to their being no room within the appeal site for the spaces and those shown outside resulting in issues with deliveries and emergency vehicles.
15. The car free aspect of the proposed development would be appropriately controlled through the planning obligation. However, the obligation would not prevent blue badge holders from applying for a parking permit which means that should future occupiers require blue badge parking they would still be able to, and based on the evidence before me there is suitable availability for on-street parking close to the appeal site.
16. Notwithstanding the above, adequate disabled persons parking would not be provided as part of the proposed development and as such, the proposal would conflict with Policy T6.1 of the London Plan and TRC03 of the LP which amongst other things, seek to ensure adequate disabled persons parking spaces. The magnitude of harm from this conflict would be limited due to the availability of parking permits for blue badge holders and on-street parking.

Other Matters

17. I note that concerns have been raised with regard to parking provision in the area, that inadequate living conditions would be provided for future occupiers and that there would be a loss of light, privacy and unacceptable noise for the occupiers of neighbouring properties. However, the development proposed is car free and the Council have also found no harm to highway safety, that adequate living conditions would be provided for future occupiers and there would be no loss of sunlight, daylight, privacy or unacceptable noise impacts for the occupiers of neighbouring properties for which I have no reason to conclude against.
18. It is suggested that local schools, dentist and doctors are overwhelmed, however, there is no evidence before me to suggest that this is the case. I am also satisfied that inclusive design and accessibility requirements can be secured by a suitably worded planning condition.

Planning Balance

19. I have found that the proposed development would not provide adequate disabled persons parking, however, due to the availability of parking permits and on-street parking the magnitude of harm would be limited.
20. The proposed development would be contrary to Policy T6.1 of the London Plan and TRC03 of the LP. These Policies are generally consistent with the Framework in seeking to provide sufficient parking for blue badge holders. The conflict with these Policies should therefore be given significant weight.
21. There is no dispute between the parties that the appeal site is underutilised brownfield land and the use of the land for housing is acceptable in principle. In this regard, Policy L2 of the National Planning Policy Framework August 2026 (the Framework) gives substantial weight to making better use of vacant and underutilised land such as the appeal site. Policy S4 of the Framework also states that development proposals within settlements should be approved unless the benefits of doing so would be substantially outweighed by any adverse effects.
22. Taking the above matters into account, the limited harm from the availability of disabled persons parking would be outweighed by the substantial weight attributed to the use of underutilised brownfield land, the site's location within a settlement and the affordable housing secured by a Unilateral Undertaking. Accordingly, while the proposal would conflict with the development plan in this case, Policy S4 of the Framework is a material consideration which indicates that the benefits of the scheme substantially outweigh its adverse effects. In this respect, that justifies a decision other than in accordance with the development plan.

Conditions

23. Condition 1 is the standard condition that relates to the commencement of development and condition 2 specifies the approved plans for the avoidance of doubt. Conditions 3, 4 and 5 require details of a construction management and logistics plan, construction drawings of the surface water drainage network and registration of Non-Road Mobile Machinery which are necessary to protect the living conditions of neighbouring occupiers and to prevent flooding.

24. Conditions 6, 7 and 8 require details of a preliminary risk assessment, implementation of temporary tree protection and an overheating assessment which are necessary to protect the character and appearance of the area and ensure adequate living conditions are provided for future occupiers. Condition 9 and 10 require details of tree planting pits and landscape and ecological management plan which are necessary to protect the character and appearance of the area.
25. Conditions 11, 12 and 13 require demonstration that the buildings can achieve full secured by design accreditation, details of external materials and hardstanding and storage of bins which are necessary to protect the character and appearance of the area. Conditions 14, 15, 16 and 17 require details of cycle parking and storage, a delivery and servicing management plan, details of the maintenance and management of the sustainable drainage scheme and confirmation the sustainable drainage scheme has been completed in accordance with the approved details. These are necessary in order ensure sustainable means of transport, highway safety and to prevent flooding.
26. Conditions 18, 19, 20, 21, 22, 23 and 24 require details of boundary treatments and privacy screens, subdivision of amenity areas, obscured windows, details of hard and soft landscaping as well as the green roof and a landscape management plan. These are necessary to protect the character and appearance of the area and protect the living conditions of neighbouring occupiers. Conditions 25, 26 and 27 require details of low impact lighting, a biodiversity enhancement plan and installation of hedgehog highways which are necessary in the interests of biodiversity and ecology.
27. Conditions 28, 29 and 30 require details of photovoltaic panels, construction of dwellings with water saving and efficiency measures and carbon dioxide emission reduction measures which are necessary in the interests of climate change. Conditions 31, 32 and 33 require some of the dwellings to be constructed to accessibility and adaptability for house design, the Japanese knotweed remediation to be carried out and ensure that noise from air source heat pumps is at an acceptable level which are necessary to ensure adequate living conditions are provided for future occupiers and the living conditions of neighbouring occupiers are protected.
28. Conditions 34, 35 and 36 require a piling method statement if piling is required, ensure the development is carried out in accordance with the provisions of the approved fire statement and prevent the flat roofs being used as balconies or other amenity areas which are necessary to ensure adequate living conditions for future occupiers and protect the living conditions of neighbouring occupiers. I have also found is exceptionally necessary to remove certain permitted development rights through condition 37 which is reasonable in this context given the density of built development, proximity to other buildings and the site's backland location.
29. The appeal proposal is subject to statutory biodiversity net gain (BNG). However, it is not necessary to impose the Council's suggested condition requiring the submission of a biodiversity gain plan (BGP) because the deemed biodiversity gain condition, under paragraph 13 of Schedule 7A to the Town and Country Planning Act 1990 (as amended), ensures that the development cannot commence until a BGP has been submitted to and approved by the local planning authority.

Conclusion

30. The proposed development would be contrary to the development plan but material considerations, including the presumption in the Framework outweigh this conflict. Therefore, for the reasons given, the appeal should be allowed.

D Wilson

INSPECTOR

Schedule of Conditions

1. This development must be begun within three years from the date of this permission.
2. The development hereby permitted shall be carried out in accordance with the following approved plans:

Site Location Plan CAST_P_070 (REV P02)
Existing Site Plan CAST_P_090 (REV P01)
Ground Floor GA CAST_P_100 (REV P08)
First Floor GA CAST_P_110 (REV P07)
Second Floor GA CAST_P_120 (REV P07)
Roof GA CAST_P_130 (REV P07)
Landscape Plan CAST_P_150 (REV P03)
Existing Elevations 01-04 CAST_P_300 (REV P02)
Existing Elevations 05-08 CAST_P_301 (REV P02)
Proposed Elevations 01-02 CAST_P_310 (REV P07)
Proposed Elevations 03-04 CAST_P_320 (REV P07)
Proposed Elevations 05-06 CAST_P_330 (REV P07)
Proposed Elevations 07-09 CAST_P_340 (REV P07)
Proposed Elevations 10-11 CAST_P_350 (REV P07)
Proposed Elevations 12-15 CAST_P_360 (REV P07)
Schedule of Accommodation (dated 20.08.2025)

3. a) No development or site works shall take place on site until a 'Construction Management and Logistics Plan' has been submitted to and approved in writing by the Local Planning Authority. The Construction Management and Logistics Plan submitted shall include, but not be limited to, the following:
 - i. details of the routing of construction vehicles to the site, hours of access, access and egress arrangements within the site and security procedures;
 - ii. site preparation and construction stages of the development;
 - iii. details of provisions for recycling of materials, the provision on site of a storage/delivery area for all plant, site huts, site facilities and materials;
 - iv. details showing how all vehicles associated with the construction works are properly washed and cleaned to prevent the passage to mud and dirt onto the adjoining highway;
 - v. the methods to be used and the measures to be undertaken to control the emission of dust, noise and vibration arising from construction works;
 - vi. a suitable and efficient means of suppressing dust, including the adequate containment of stored or accumulated material so as to prevent it becoming airborne at any time and giving rise to nuisance;
 - vii. noise mitigation measures for all plant and processors;
 - viii. details of contractor's compound and car parking arrangements;
 - ix. details of interim car parking management arrangements for the duration of construction;
 - x. details of a community liaison contact for the duration of all works associated with the development. For major sites, the Statement shall be informed by the findings of the assessment of the air quality impacts of construction and demolition phases of the development.

b) The development shall thereafter be implemented in accordance with the measures detailed within the statement.

4. a) Prior to the commencement of development, construction drawings of the surface water drainage network, associated sustainable drainage components and flow control mechanisms and a construction method statement shall be submitted and agreed in writing by the local planning authority.

b) The scheme shall then be constructed as per the agreed Sustainable Drainage Assessment (Ref: 84926R3 dated 25 July 2025) and remaining in perpetuity for the lifetime of the development unless agreed in writing by the Local Planning Authority. No alteration to the agreed drainage scheme shall occur without prior written approval from the Local Authority.

5. Prior to the commencement of the development, evidence of site registration at <http://nrmm.london/> to allow continuing details of Non-Road Mobile Machinery (NRMM) and plant of net power between 37kW and 560 kW to be uploaded during the construction phase of the development shall be submitted to and approved by the Local Planning Authority.

Evidence that all plant and machinery to be used during the demolition and construction phases of the development shall meet Stage IV (and Stage V for generators) of EU Directive 97/68/ EC for both NO_x and PM emissions shall be submitted to the Local Planning Authority.

During the course of the demolitions, site preparation and construction phases, an inventory and emissions records for all Non-Road Mobile Machinery (NRMM) shall be kept on site. The inventory shall demonstrate that all NRMM is regularly serviced and detail proof of emission limits for all equipment. All documentation shall be made available for inspection by Local Authority officers at all times until the completion of the development.

6. Part 1

Before development commences other than for investigative work:

a) A desktop study (Preliminary Risk Assessment) shall be carried out which shall include the identification of previous uses, potential contaminants that might be expected, given those uses, and other relevant information. Using this information, a diagrammatical representation (Conceptual Model) for the site of all potential contaminant sources, pathways and receptors shall be produced. The desktop study (Preliminary Risk Assessment) and Conceptual Model shall be submitted to the Local Planning Authority. If the desktop study and Conceptual Model indicate no risk of harm, development shall not commence until approved in writing by the Local Planning Authority.

b) If the desktop study and Conceptual Model indicate any risk of harm, a site investigation shall be designed for the site using information obtained from the desktop study and Conceptual Model. This shall be submitted to, and approved in writing by, the Local Planning Authority prior to that investigation being carried out on site. The investigation must be comprehensive enough to enable: - a risk assessment to be undertaken, - refinement of the Conceptual Model, and - the development of a Method Statement detailing the remediation requirements.

The risk assessment and refined Conceptual Model shall be submitted, along with the site investigation report, to the Local Planning Authority.

c) If the risk assessment and refined Conceptual Model indicate any risk of harm, a Method Statement detailing the remediation requirements, using the information obtained from the site investigation, and also detailing any post remedial monitoring shall be submitted to, and approved in writing by, the Local Planning Authority prior to that remediation being carried out on site.

Part 2

d) Where remediation of contamination on the site is required completion of the remediation detailed in the method statement shall be carried out and a report that provides verification that the required works have been carried out, shall be submitted to, and approved in writing by the Local Planning Authority before the development is occupied.

7. No site works (including any temporary enabling works, site clearance and demolition) or development shall take place until the temporary tree protection shown on the Tree Protection Plan ref. 24115-2, by Barrell Tree Care, approved under this condition has been erected around existing trees on site. This protection shall remain in position until after the development works are completed and no material or soil shall be stored within these fenced areas at any time. The development shall be implemented in accordance with the tree survey and Arboricultural Method Statement dated 7th February 2025, ref. 24115-AIA-CA, as approved under this condition.
8. No development (except site clearance and enabling works) shall take place until an overheating assessment carried out by suitably qualified consultant which assesses the likely impacts of overheating within the development, alongside a final detailed scheme of mitigation for overheating aligning with and taking account of technical acoustic considerations, has been submitted to and approved in writing by the Local Planning Authority. The report shall include all calculations and baseline data and be set out so that the Local Planning Authority can fully audit the report and critically analyse the content and recommendations. The measures approved in accordance with this condition shall be implemented in their entirety prior to the commencement of the use/first occupation of the development and retained as such thereafter.
9. Prior to the commencement of the development, details of the tree planting pits shall be provided that include sufficient rooting space for the x 10 lime trees and soft landscape to establish and grow to a height that would normally be expected for the species. There are many suitable preparatory treatments to achieve the required rooting space below the proposed access road known as modular structural soil cell systems. Details of these systems can be found within the Trees and Design Action Group publication Trees in the Hardscape.

10. No development shall take place (including any ground works, site, or vegetation clearance), until Landscape and Ecological Management Plan (LEMP) has been submitted to and approved in writing by the local planning authority addressing: Creation and enhancement of habitats in accordance with the statutory Biodiversity Gain Plan and completed Statutory Metric toolkit with allocated offsite units, including proof of purchase of the required registered offsite Biodiversity Units.

The LEMP will include the following:

- a) works.
- b) Purpose and conservation objectives for the proposed ecological design Detailed design(s) to achieve stated objectives.
- c) Extent and location/area of proposed works on appropriate scale maps and plans.
- d) Type and source of materials to be used where appropriate, e.g. native species of local provenance.
- e) Timetable for implementation, including the planting of new trees prior to first use of the development.
- f) g) h) i) j) Persons responsible for implementing the works. Details of initial aftercare. Aims and objectives of management. Prescriptions for management actions. Preparation of a work schedule (including an annual work plan capable of being rolled forward over a five-year period)
- k) Habitat monitoring provisions to be submitted to the LPA at monitoring interval set out within the LEMP.
- l) Details of the individual, body or organisation(s) responsible for implementation of the plan.

The LEMP will be implemented in accordance with the approved details and all features shall be retained in that manner thereafter.

11. Prior to the commencement of the development, details shall be submitted to, and approved, in writing, by the Local Planning Authority to demonstrate that the buildings can achieve full 'Secured by Design' Accreditation and 'Secured by Design' accreditation shall be obtained for the approved development. The development shall only be carried out in accordance with the approved details.
12. a) Prior to their installation, details of the materials to be used for the external surfaces of the building(s) and hard surfaced areas hereby approved shall be submitted to and approved in writing by the Local Planning Authority.
b) The development shall thereafter be implemented in accordance with the materials as approved under this condition prior to occupation and retained as such thereafter.
13. a) Notwithstanding the approved plans, before the development hereby permitted is first occupied, details of enclosures and screened facilities for the storage of recycling containers and wheeled refuse bins or other refuse storage containers where applicable, together with a satisfactory point of collection shall be submitted to and approved in writing by the Local Planning Authority.
b) The development shall be implemented in full accordance with the details as approved under this condition prior to the first occupation and retained as such thereafter.

14. a) Notwithstanding the approved plans, before the development hereby permitted is first occupied cycle parking spaces and cycle storage facilities shall be provided in accordance with a scheme to be submitted to and approved in writing by the Local Planning Authority.
b) The development shall thereafter be implemented in accordance with the details as approved under this condition and the spaces shall be permanently retained thereafter.
15. Prior to first occupation of the permitted development, a Delivery and Servicing Management Plan (including waste storage and collection arrangements) shall be submitted to and approved in writing by the Local Planning Authority. The permitted development thereafter shall only be operated in accordance with the approved plan.
16. The development hereby approved shall not be first occupied until details of the maintenance and management of the sustainable drainage scheme have been submitted to and approved in writing by the Local Planning Authority. The drainage scheme shall be implemented prior to the first occupation of the development hereby approved and thereafter managed and maintained in accordance with the approved details in perpetuity. The Local Planning Authority shall be granted access to inspect the sustainable drainage scheme for the lifetime of the development. The details of the scheme to be submitted for approval shall include:
- I. a timetable for its implementation,
 - II. details of SuDS features and connecting drainage structures and maintenance requirement for each aspect
 - III. a management and maintenance plan for the lifetime of the development which shall include the arrangements for adoption by any public body or statutory undertaker, or any other arrangements to secure the operation of the sustainable drainage scheme throughout its lifetime.
17. Upon completion of the surface water drainage system, including any SuDS features, and prior to the first occupation of the development; a survey and report from an independent surveyor shall be submitted to and approved in writing by the Local Planning Authority. The survey and report shall demonstrate that the surface water drainage system has been constructed in accordance with the details approved pursuant to conditions 4 and 16. Where necessary, details of corrective works to be carried out along with a timetable for their completion, shall be included for approval in writing by the Local Planning Authority. Any corrective works required shall be carried out in accordance with the approved timetable and subsequently re-surveyed with the findings submitted to and approved in writing by the Local Planning Authority.
18. a) The site shall not be brought into use or first occupied until details of the means of enclosure, including boundary treatments, have been submitted to and approved in writing by the Local Planning Authority.
b) The treatment of boundaries should be permeable to species such as hedgehogs (*Erinaceus europaeus*) and common toad (*Bufo bufo*), with the introduction of a minimum of 1 no 13 x 13cm ground level access 'hedgehog hole' between the application site and each neighbouring piece of land to enable connections and prevent the fragmentation of habitat

- c) The development shall be implemented in accordance with the details approved as part of this condition before first occupation or the use is commenced and retained as such thereafter.
19. Before the development hereby permitted is first occupied, the sub-division of the amenity areas shall be implemented as shown on the approved plan: Proposed Ground Floor Plan CAST_P_100 Rev P08 and retained as such thereafter.
20. a) Before the development hereby permitted is first occupied, details of privacy screens to be installed shall be submitted to and approved in writing by the Local Planning Authority.
b) The screens shall be installed in accordance with the details approved under this condition before first occupation or the use is commenced and retained as such thereafter.
21. Prior to occupation, all proposed windows at first floor on the eastern elevation to Units 04-07 and southern elevation of 09-12 & 18 facing onto the Castle Road properties shall be glazed with obscure glass only and shall be permanently retained as such thereafter and shall be permanently fixed shut with only a fanlight opening.
22. a) A scheme of hard and soft landscaping, including details of existing trees to be retained and size, species, planting heights, densities and positions of any soft landscaping, shall be submitted to and agreed in writing by the Local Planning Authority prior to the occupation of the hereby approved development.
b) All work comprised in the approved scheme of landscaping shall be carried out before the end of the first planting and seeding season following occupation of any part of the buildings or completion of the development, whichever is sooner, or commencement of the use.
c) Any existing tree shown to be retained or trees or shrubs to be planted as part of the approved landscaping scheme which are removed, die, become severely damaged or diseased within five years of the completion of development shall be replaced with trees or shrubs of appropriate size and species in the next planting season.
d) Provide an updated Urban Greening Factor (UGF) assessment based on the final landscape design.
23. a) Prior to the first occupation of the hereby approved development, details of the proposed green roof shall be submitted to and approved in writing by the Local Planning Authority.
b) The green roof shall be implemented in accordance with the details approved by this condition prior to the commencement of the use or first occupation of the development and retained as such thereafter. Should part of the approved green roof be removed, die, become severely damaged or diseased within five years of the completion of development, it shall be replaced in accordance with the details approved by this condition.

24. a) Prior to the occupation of the hereby approved development, details of a Landscape Management Plan for all landscaped areas for a minimum period of 25 years shall be submitted to and approved in writing by the Local Planning Authority.
- b) The Landscape Management Plan shall include details of long-term design objectives, management responsibilities, maintenance schedules and replacement planting provisions for existing retained trees and any new soft landscaping to be planted as part of the approved landscaping scheme.
- c) The approved Landscape Management Plan shall be implemented in full in accordance with details approved under this condition prior to occupation of the proposed development.
25. Prior to the occupation of development, details of a Low Impact Lighting scheme shall be submitted to and approved by the local planning authority. Any artificial lighting scheme designed for development including off street lighting, shall be in accordance with Bats Conservation Trust Guidance Note 08/23 Bats and artificial lighting in the UK Bats and the Built Environment series. The approved details shall be implemented in accordance with the details approved by this condition prior to occupation and retained as such thereafter.
26. Prior to occupation of the development the details of a Biodiversity Enhancement Plan shall be submitted to and approved by the local planning authority. The document shall contain the location, height, orientation, specification of all ecological enhancement feature including 1 x integrated bat roost box (Woodstone or similar alternative); 1 x swift brick nest box; and 1 x Woodstone Build-in House Sparrow Nest Box; to be installed in line with guidance 'Designing for Biodiversity A technical guide for new and existing buildings (RIBA)'. Details for submission shall also include all biodiverse soft landscaping features to be installed on site including species rich and native planting, 2 x insect hotels, and 2 x hedgehog homes. The approved details shall be implemented in full prior to occupation and retained as such thereafter.
27. Prior to occupation at least 3 x hedgehog highways (13cm x 13cm gaps) at the base of the boundary fencings are to be installed at the base of the boundary fencings. The hedgehog highways must be installed in the base of the boundary fencing to ensure continued access for commuting hedgehogs and other wildlife through the residential gardens and on and offsite and retained as such after.
28. Prior to the erection and installation of photovoltaic panels, details of the size, design and siting of all photovoltaic panels to be installed as part of the development shall be submitted to and approved in writing by the Local Planning Authority. The development shall be carried out and constructed in accordance with the approved details and retained as such thereafter.

29. Prior to the first occupation of the new dwellinghouse(s) (Use Class C3) hereby approved they shall all have been constructed to have 100% of the water supplied to them by the mains water infrastructure provided through a water meter or water meters and each new dwelling shall be constructed to include water saving and efficiency measures that comply with Regulation 36(2)(b) of Part G 2 of the Building Regulations to ensure that a maximum of 110 litres of water is consumed per person per day with a fittings based approach should be used to determine the water consumption of the proposed development. Any use of grey water and/or rain water systems needs to be separate from the potable (wholesome) water system and needs to meet the requirements and guidance set out in Part G of the Building Regulations. The development shall be maintained as such in perpetuity thereafter.
30. Prior to the first occupation of the development hereby approved it shall be constructed incorporating carbon dioxide emission reduction measures which achieve an improvement of not less than 75.1% in carbon dioxide emissions when compared to a building constructed to comply with the minimum Target Emission Rate requirements of the 2021 Building Regulations. The development shall be maintained as such in perpetuity thereafter.
31. Prior to the first occupation of the new dwellinghouses (Use Class C3) permitted, with the exception of units 2, 3, 17-20, they shall have been constructed to meet and achieve all the relevant criteria of Part M4(2) of Schedule 1 to the Building Regulations 2010 (or the equivalent standard in such measure of accessibility and adaptability for house design which may replace that scheme in future) and 10% constructed to meet and achieve all the relevant criteria of Part M4(3) of the abovementioned regulations. The development shall be maintained as such in perpetuity thereafter.
32. The development shall be implemented in full accordance with the remediation strategies outlined within the Japanese knotweed survey report (Inspectas Land Remediation, 28th September 2024), as approved under this condition.
33. (i) The level of noise emitted from the Air Source Heat Pumps (ASHP) plants hereby approved shall be at least 5dB(A) below the background level, as measured from any point 1 metre outside the window of any room of a neighbouring residential property. If the noise emitted has a distinguishable, discrete continuous note (whine, hiss, screech, hum) and/or distinct impulse (bangs, clicks, clatters, thumps), then it shall be at least 10dB(A) below the background level, as measured from any point 1 metre outside the window of any room of a neighbouring residential property.
(ii) An acoustic consultant shall be appointed during the detailed design stage, to ensure that the above Air Source Heat Pump plant noise criteria will be achieved once the ASHPs have been specified and installed.

34. If piling is required, no piling shall take place until a Piling Method Statement (detailing the depth and type of piling to be undertaken and the methodology by which such piling will be carried out, including measures to prevent and minimise the potential for damage to subsurface sewerage infrastructure, and the programme for the works) and piling layout plan including all Thames Water wastewater assets, the local topography and clearance between the face of the pile to the face of a pipe has been submitted to and approved in writing by the Local Planning Authority in consultation with Thames Water. Any piling must be undertaken in accordance with the terms of the approved piling method statement and piling layout plan.
35. The development must be carried out in accordance with the provisions of the approved Fire Statement Issue 3 (dated 11/02/2025) prepared by Alt Fire unless otherwise approved in writing by the Local Planning Authority.
36. Except for the dedicated balconies indicated on the Proposed First Floor Plan CAST_P_110 Rev P07 and Proposed Second Floor Plan CAST_P_120 Rev P07, all other approved flat roofs shall only be used in connection with the repair and maintenance of the building and shall at no time be converted to or used as a balcony, roof garden or similar amenity or sitting out area.
37. Notwithstanding the provisions of the Town and Country Planning (General Permitted Development) Order 2015 (or any order revoking and re-enacting that Order with or without modification), no development otherwise permitted by any of Classes A-G of Part 1 of Schedule 2 of that Order shall be carried out within the area of each residential curtilage hereby approved.

End of Schedule